

oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The motion is granted. Plaintiff shall serve full and complete responses to requests for admission Nos. 8, 9, 10, 19 through 24, 27, 34, 41 and 81. (set one) within 20 calendar days of entry of the Order After Hearing.

Defendant also seeks monetary sanctions pursuant to Code of Civil Procedure Section 2033.290(d): “The court shall impose a monetary sanction...against any party...who unsuccessfully...opposes a motion to compel a further response...” But here, plaintiff did not oppose the motion, so the request for sanctions is denied.

Law & Motion
Add On

27. 9:00 AM CASE NUMBER: N26-0600
CASE NAME: TIFFANY PANFILI VS. TARA STARR M.D. INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: TARA STARR M.D. INC.

TENTATIVE RULING:

This is an unlawful detainer action (see CCP 1159-1179) in which the complaint alleges that Defendant failed to pay rent owing pursuant to the terms of a lease, a 3 day notice to “pay or quit” was served on Defendant and Defendant failed to pay the rental owing or vacate the premises. Defendant demurs to the Complaint based on “uncertainty” that the complaint fails to state how the amount owing was calculated, etc. And that certain allegations are untrue. A demurrer cannot be used to challenge veracity of allegations in the complaint. Defendant’s objections to the complaint are subject to proof during discovery and at trial and are not the basis for demurrer. The demurrer is **OVERRULED**. Answer shall be filed within five days from this hearing date.